

MARTIN v SANCHEZ, et al

24CV47669

**EA FAMILY SERVICE'S DEMURRER and
MOTION TO STRIKE PORTIONS OF THE COMPLAINT**

Plaintiff Caleb Martin ("Plaintiff") filed his Complaint arising out of allegations of sexual child abuse against Janine Ann Sanchez ("Sanchez"), Environmental Alternatives⁴, EA Family Services ("EA Services") and Does 1-50 (collectively, "Defendants"). Now before the are two motions filed by EA Services: 1) demurrer to the first cause of action for sexual abuse; and 2) a motion to strike claims for punitive damages. Both motions are addressed herein.

Counsel for EA Services avers that he attempted to meet and confer regarding both the demurrer and motion to strike but did not receive answers from Plaintiff's counsel. (Declarations of Jihan El Saouda.)

Plaintiff has filed notice that he does not oppose the motion to strike punitive damages filed by EA Services. Accordingly, the motion to strike is GRANTED.

I. Facts

Plaintiff, while a minor of approximately 14 years of age, was placed by EA Services as a foster child into the home of Sanchez. Subsequently, Plaintiff claims that he was subjected to sexual abuse by Sanchez. Plaintiff contends that Sanchez coerced him into participating in the sexual conduct. On July 19, 2016, Sanchez was arrested for various felonies related to these allegations. Plaintiff asserts that the alleged abuse resulted in mental, physical, and emotional pain and suffering.

Plaintiff has brought the instant action against moving Defendant EA Services for the single cause of action of child sexual abuse.

II. Legal Standard

⁴ Defendants assert that EA Family Services was erroneously also sued as Environmental Alternatives.

“A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded.” (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of “contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that “reasonably can be inferred from those expressly pleaded, and matters of which judicial notice has been taken.” (*Fremont Indemnity Co.*, 148 Cal. App. 4th 100, 111.) In considering the demurrer, the court must accept the allegations set forth in the complaint as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591.)

III. Discussion

Plaintiff brings a claim for child sexual abuse which is alleged to have happened within the year preceding July of 2016, when he was about 14 years of age.

Civil causes of action for sexual abuse are allowable and have no statute of limitations as set forth in Code of Civil Procedure section 340.1. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1225.) Section 340.1 applies to conduct that would be criminally prosecutable under various sections of the Penal Code, including those alleged by Plaintiff. (Complaint ¶ 8.) A civil cause of action for damages arising out of child sexual abuse can be brought against the perpetrator, and/or – as the case here – “against any person or entity who owed a duty of care to the plaintiff, if a wrongful or negligent act by that person or entity was a legal cause of the childhood sexual assault that resulted in the injury to the plaintiff.” (CCP Section 340.1(a)(2).) In order to bring a cause of action against an entity under subsection (a)(2), the sexual conduct must “have arisen through an exploitation of a relationship over which the third party has some control.” (*Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 921.) Further, to create liability on the part of the entity, Plaintiff must allege that EA Services knew, or should have known, of Sanchez’s criminal nature and illicit behaviors toward children. (*Id.* at 922.)

Here, while the complaint does allege that EA Services had a duty to provide Plaintiff with a safe home, it does not allege that the Sanchez conduct was anything over which EA Services had control. Nor are there any allegations related to how or if EA Services had any knowledge - or why they should have had knowledge – of Sanchez’s illegal conduct.

The Court agrees with the Plaintiff that the specifics of the misconduct are unnecessary and need not be recited in detail in the Complaint. However, the Complaint does need to set forth sufficient facts giving rise to the cause of action against EA Services.

IV. Conclusion

The demurrer as to the first cause of action against EA Services is **SUSTAINED**, with 20 (twenty) days leave to amend. The unopposed motion to strike the punitive damages claims as they relate to EA Services is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant EA Services to prepare a formal Order in conformity with the Ruling and complying with Rule of Court 3.1312.

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFFS' MOTION TO STRIKE DEFENDANT'S ANSWER

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lavina Richie ("Defendant.") Now before the Court is Plaintiff's Motion to Strike Answer which was filed on May 12, 2025.

Plaintiff moves to strike the Answer because Defendant filed an unverified Answer. However, on June 13, 2025, Defendant filed an Amended Answer that is verified.

Accordingly, Plaintiff's motion is **DENIED** as moot.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.